



POLICE DEPARTMENT

September 25, 2009

MEMORANDUM FOR: Police Commissioner

Re: Lieutenant Jose Rosario
Tax Registry No. 918253
Transit Bureau District No. 1
Disciplinary Case No. 83095/07

The above-named member of the Department appeared before me on June 15, 2009, charged with the following:

1. Said Lieutenant Jose Rosario, while assigned to Transit District #1, while on duty, on or about June 29, 2006, at or about 2345 hours, in the vicinity of Broadway and 58th Street, Manhattan, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Lt. Rosario failed to make the proper notifications following an unusual occurrence in which a Deputy Inspector while off-duty and driving a Department vehicle had a collision with a New York City Fire Department engine.

PG 203-10 Page 1, Paragraph 5 – GENERAL REGULATIONS

2. Said Lieutenant Jose Rosario, while assigned to Transit District #1, while on duty, on or about June 29, 2006, at or about 2345 hours, in the vicinity of Broadway and 58th Street, Manhattan, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Lt. Rosario failed to follow the proper Department Procedure with respect to a Department vehicle accident in that he directed a Transit District Sergeant to investigate the accident when it should have been done by a Patrol Service Borough Command.

PG 203-10 Page 1, Paragraph 5 – GENERAL REGULATIONS

The Department was represented by Daniel Maurer, Esq. Department Advocate's Office and the Respondent was represented by Peter Brill, Esq.

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The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty as charged.

SUMMARY OF EVIDENCE PRESENTED

Introduction

It is not disputed that on June 29, 2006, close to midnight, Deputy Inspector (DI) Kathleen Fanning (who has since changed her name to Kathleen White), who was at that time the commanding officer of the 24 Precinct, was off-duty, operating an unmarked Department vehicle. Her vehicle collided with a Fire Department engine at the intersection of Broadway and 58th Street, Manhattan. After the collision, DI Fanning telephoned Transit Bureau District No. 1 (TD1), which is located beneath the street level at 59th Street and Columbus Circle, Manhattan, from the scene of the accident. She had a conversation with the Respondent, who was on duty, assigned to TD1 and serving as the platoon commander.

The Department's Case

The Department called Sergeant Mark Klika and Sergeant Martin Bailey as witnesses.

Sergeant Mark Klika

Sergeant Mark Klika, assigned to TD1, testified that he was on duty at TD1 at 59th Street and Columbus Circle, on June 29, 2006, assigned as the patrol supervisor. At about midnight, the Respondent told him to go "above ground" to the intersection of Broadway and 58th Street. Sergeant Klika recalled that the Respondent told him, "A Deputy Inspector who used to work here needs help." When Sergeant Klika arrived at Broadway and 58th Street, he ascertained that no one had been injured in the accident. He examined the outside of the unmarked Department vehicle that DI Fanning had been driving and that had collided with a Fire Department truck and observed that there was damage on both sides of the car. He took photographs of this damage and put the photos into an envelope. He was shown three photos, which are dated July 6, 2006, of a damaged car [Department's Exhibit (DX) 2 A,B and C]. He testified that although these were not the photos he had personally taken at the scene, he recognized the car as the Department vehicle that DI Fanning had been driving and he confirmed that the damage depicted in the photos was the same damage he had observed on the car. He determined that the Department vehicle was no longer drivable as a result of the accident because part of the body of the car that was near the wheel wells had been bent inwards as a result of the collision and was rubbing up against the car's wheels.

He recalled that two uniformed police officers and a sergeant responded to the accident scene. He approached the sergeant and requested that the police officers prepare the Police Accident Report (PAR) because Transit Bureau personnel do not prepare PARs and are not familiar with the PAR form. He recalled that after the police officers

prepared the PAR, he “glanced” at it but he did not review the entries they had made to insure that they were accurate.

He was later issued a B Command Discipline (CD) which alleged that he had improperly conducted his investigation at the scene of the accident in that he had failed to personally fill out the PAR. He signed this CD and forfeited one day and four hours. He acknowledged that because he is assigned to the Transit Bureau, he should not have been the member of the service who conducted the investigation of this vehicular accident.

On cross-examination, he testified that he spoke to DI Fanning at the scene of the collision and that she told him that she had been driving eastbound on 58th Street when she was cut-off by another car which caused her car to hit the Fire truck. He testified that he also spoke to the firefighters who had been inside the truck at the time of the collision and they agreed with DI Fanning’s version of how the accident occurred.

Sergeant Martin Bailey

Sergeant Martin Bailey, who has been assigned to the Internal Affairs Bureau’s Special Investigations Unit for the past four years, testified that he was assigned to investigate the Respondent’s involvement regarding a vehicular accident that occurred on June 29, 2006, in which DI Fanning’s Department vehicle collided with a Fire Department truck.

Sergeant Bailey interviewed the two police officers from Midtown North who responded to the accident scene, Police Officers Renke and Quintero. Sergeant Bailey also interviewed Firefighter Cintron, who was driving the Fire Engine, and Fire Lieutenant Vernon who was seated in the front passenger seat of the Fire Engine. The

version of how the accident occurred that Lieutenant Vernon provided to Police Officers Renke and Quintero was determined to be inaccurate. Lieutenant Vernon ultimately admitted that at the time the accident occurred DI Fanning was driving northbound while her car was in the southbound lanes of Broadway. Lieutenant Vernon explained that he had initially provided an inaccurate version of how the accident occurred because he "had respect for Inspector Fanning because she was a high ranking member of the Police Department." When Sergeant Bailey interviewed Sergeant Klika, he asked him if DI Fanning appeared to him to be intoxicated at the scene. He answered, "No." No one prepared a Fitness for Duty Report regarding DI Fanning. Sergeant Bailey's commanding officer conducted an official Department interview of DI Fanning who stated that she had consumed two drinks prior to the accident and that after the accident when she called TD1 she requested that TD1 send someone to the accident scene. DI Fanning admitted at her official Department interview that at the time her vehicle collided with the Fire Engine she was driving the wrong way, northbound, in a southbound lane on Broadway.

On September 11, 2006, Sergeant Bailey went to Motor Transport where he personally examined the Department vehicle that DI Fanning had been driving and took a photograph of the car (DX 1).

On cross-examination, he conceded that he did not examine or photograph DI Fanning's vehicle until "a couple of weeks" after the accident, that the car was removed from the accident scene to TD1, and that his examination of the car took place at "Motor Transport" where the car had transported from TD1. He conceded that he could not state with certainty that when he examined and photographed the car, it was in the same

condition as it was at the point in time when it was removed from the accident scene to TD1. He recalled that Police Officer Renke prepared the PAR (RX A) [The section of the PAR entitled "Accident Description/Officer's Notes" states: "At TPO, driver vehicle 1 states she was driving straight in south lane when vehicle 3 cut vehicle 1 off. Vehicle 1 swerved to avoid accident with vehicle 3. Driver vehicle 2 states when vehicle 1 swerved to avoid vehicle 3 vehicle 2 then struck vehicle 1 – Driver vehicle 3 not on scene."]

The Respondent's Case

The Respondent called Deputy Inspector Kathleen White as a witness and testified in his own behalf.

Deputy Inspector Kathleen White

Deputy Inspector Kathleen White testified that she is presently assigned to Patrol Borough Bronx where she "handles special projects." On June 29, 2006, when her last name was Fanning, she was assigned as commanding officer, 24 Precinct. She testified that she was previously assigned to Transit Borough Manhattan and that, although she was never assigned to Transit District #1, she had spent some time in Transit District #1 "a long time ago."

On the evening of June 29, 2006, she attended a "job function," a Department sanctioned "networking" social event "honoring a few of our chiefs" which was held aboard an Apple Boat Cruise craft. After the boat docked, she left the function and, after conversing with friends on the dock, she and a retired Department chief left to get a cup of coffee together. About one half hour later, she was driving her unmarked Department

Chevrolet Impala on 57th Street. She was not intoxicated or unfit for duty. As she was entering the intersection of Broadway, she was “cut off by another car” and became disoriented. She “was trying to get off that block” when her vehicle collided with a Fire Department engine. She was shaken up by the accident and unsure of where she was. Her vehicle wound up on Broadway just north of 58th Street.

She testified that because “my Department radio in the car didn’t work and I really didn’t know where I was,” she decided to call Transit District #1. The telephone number for the Transit District #1 Desk Officer had previously been programmed into the “speed dial” function on her cell phone “because District #1 and District #3 were commands that fell under the 24 Precinct.” She told the Desk Officer that she had been in an accident and “would they handle it, could they handle it, and they said yes.” She testified that, “I don’t specifically remember telling the lieutenant or the sergeant exactly what.” She walked to Transit District #1 and was driven home. She testified that “in retrospect,” she considered her accident to have been an unusual occurrence.

She was served with charges for “failure to make notification, driving on a one way the wrong way, and the third was having Transit District handle it instead of Midtown North.” She pleaded guilty to those charges and accepted responsibility for her misconduct.

On cross-examination, she denied that she had told the Respondent that the accident was only a “minor fender bender” because “there was extensive damage to the vehicle” and an air bag deployed. She asserted that she only told him that there were no injuries. She acknowledged that from the accident scene she only called TD1. She did not call 911.

The Respondent

The Respondent, who has been assigned to TD1 for the past three years, “was promoted to lieutenant out of IAB” where he was assigned as an investigator for almost two years. The Respondent testified that although TD1 is located within the subway system, “we handle our own accidents” involving Transit District vehicles. The Respondent stated that “even though the Patrol Guide specifically states the patrol supervisor of the precinct” of occurrence, TD1 has “a patrol supervisor and he does all the paperwork for all the accidents” involving Department vehicles assigned to TD1. The Respondent opined that “from my interpretation of” Patrol Guide Procedure 217-06, the patrol supervisor of the precinct of occurrence “does include the district as a patrol supervisor.” The Respondent testified that he has personally responded to accidents involving Transit District vehicles including accidents where the accident was the fault of an MOS assigned to TD1.

The Respondent testified that prior to this trial, he reviewed the 2006 Annual Report regarding Department Vehicle Accidents. This report indicated that during 2006 there were 4,135 accidents which involved Department vehicles, and that this number represented an increase of 2.9 per cent compared to 2005.

The Respondent testified that he “was on the desk” at TD1 assigned as the platoon commander for the first platoon on June 29, 2006. He recalled that at about 2345 hours he received a telephone call from DI Fanning who told him that she had just been involved “in an accident upstairs and she asked if I can send anyone to help her.”

The Respondent acknowledged that MOS assigned to TD1 “generally” do not respond to vehicle accidents that do not involve a TD1 vehicle and that to send an MOS

assigned to TD1 to DI Fanning's accident was, in his experience, "probably the first time" that this had occurred. The Respondent instructed Sergeant Klika, who was assigned as the TD1 patrol supervisor, "to go upstairs and assist the inspector." He believed that Sergeant Klika was very competent and that he was familiar with preparing a PAR.

The Respondent monitored the radio traffic and heard a transmission that there had been an accident with injuries. The Respondent had asked DI Fanning if anyone was injured and she had responded, "No." The Respondent testified that he decided to personally respond to the scene of the accident "to make sure that everybody was all right" because he was concerned about this report that there were injuries. When he arrived at the scene "40 seconds" later, he asked DI Fanning if she was hurt and she responded, "No." When he asked the firefighters if any of them was hurt, "they just laughed" and described their Fire truck as "a tank." He did not ask DI Fanning or the firefighters what had happened. Sergeant Klika told him that both vehicles had been traveling eastbound on 58th Street and that DI Fanning's vehicle had been cut off causing her to hit the Fire truck. DI Fanning did not appear to be intoxicated or unfit for duty and her version of how the accident occurred "seems probable, I mean it wasn't like it was impossible."

DI Fanning wanted to drive her vehicle home. The Respondent offered to drive the vehicle to the TD1 parking area to ascertain if it was drivable. When he did this, he noticed that, although the car did not appear to be "totaled," because "the wheel was on the fender," the car was not drivable. None of the firefighters approached him or offered information that was different from what Sergeant Klika had told him. "Months" later, he

learned for the first time that DI Fanning had been driving her vehicle northbound while her car was in a southbound lane of Broadway. After he drove the vehicle to the TD1 parking area, he walked DI Fanning into TD1. He then directed a sergeant to drive DI Fanning home because her car was not drivable.

The Respondent then instructed Sergeant Klika to obtain a PAR number from Midtown North Precinct, to obtain a "borough" number from Patrol Borough Manhattan South and to notify Fleet Services Division. These notifications were made 30 to 45 minutes after the accident. He believed that Sergeant Klika had prepared the PAR himself until he learned months later that Sergeant Klika had received a CD.

The Respondent testified that he did not notify the duty captain to respond and conduct an investigation because the accident was not an unusual occurrence, there were no injuries and DI Fanning was not unfit for duty.

On cross-examination, the Respondent was asked if DI Fanning had told him during their telephone conversation that the accident was a "minor fender bender." The Respondent answered that he had no present recollection that she had used the word "minor." He was then confronted with an answer he provided at his official Department interview on July 11, 2006, that, "When the inspector called...she said it was no big deal, minor fender bender." The Respondent again answered that he had no specific recollection that she had used the word "minor."

The Respondent acknowledged that a female sergeant and police officers from Midtown North responded to the accident scene. The Respondent acknowledged that he had obtained the 2006 Annual Report regarding Department Vehicle Accidents from his command and that of the 4,135 accidents which involved Department vehicles,

73 percent involved marked vehicles and 27 percent involved unmarked vehicles such as the one DI Fanning drove. [The parties stipulated that during 2006 there were no accidents involving marked or unmarked Department vehicles where the Department vehicle was driving in the wrong direction resulting in a broadside collision.] DI Fanning did not tell him anything about the accident, only that she was not injured and that she wanted to drive her car home.

FINDINGS & ANALYSIS

Specification No. 1

It is charged that the Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that he failed to make proper notifications following an unusual occurrence in which a Department vehicle being driven by a Deputy Inspector collided with a New York City Fire Department engine.

Patrol Guide Procedure 212-09, governing Unusual Occurrence Reports, requires that a desk officer who has been notified of an unusual occurrence must notify the duty captain (or the desk officer's commanding officer) to respond so that he or she can "conduct an immediate investigation of the occurrence," "inform Operations Unit...of details of investigation," and "report results of investigation" in a report to "promptly notify the Chief of Patrol of an unusual occurrence."

The Respondent acknowledged that he did not comply with the mandatory notification procedures delineated in Patrol Guide Procedure 212-09. The Respondent argued that since accidents involving Department vehicles are not an infrequent occurrence (the 2006 Annual Report regarding Department Vehicle Accidents shows that

during 2006 there were 4,135 accidents involving Department vehicles), the vehicular collision that is the subject of this charge did not constitute an “unusual occurrence.” Hence, he argued, he was not obligated to make the required notifications.

Patrol Guide Procedure 212-09 defines “unusual occurrence” as “substantially more than an ordinary occurrence because of its seriousness, peculiarities, sensationalism, vastness, differences, newsworthiness, or potential to affect police-community relations involving interracial/ethnic conflict or community unrest.” A collision between a New York City Police Department vehicle and a New York City Fire Department engine is clearly a newsworthy event and the fact that this particular collision took place on Broadway in midtown Manhattan served to increase its newsworthiness. Thus, I reject the Respondent’s argument that this accident was an ordinary occurrence.

Moreover, the record shows that the Respondent had a reason to choose to ignore the notification procedures mandated by Patrol Guide section 212-09. I find that it is more than mere coincidence that the unusual occurrence the Respondent failed to report involved a Deputy Inspector who was no stranger to the Respondent or his command. DI White testified that her contacts with Transit District #1 were frequent enough that the telephone number for the Desk Officer was preprogrammed into the “speed dial” function of her cell phone. She further acknowledged that she decided to call Transit District #1 from the accident scene not only because it was nearby, but also because she “knew that they would help me,” because she had spent some time in Transit District #1 when she was assigned to Transit Borough Manhattan and because Transit District #1 was a command “that fell under the 24 Precinct.” Sergeant Klika recalled that the Respondent directed him to go to the accident scene and told him that “a Deputy Inspector who used

to work here needs help.” The Respondent acknowledged that he personally removed the Deputy Inspector’s car from the accident scene and had her driven home.

Based on the above, the Respondent is found Guilty of Specification No. 1.

Specification No. 2

It is charged that the Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by failing to follow proper Department procedure with respect to a Department vehicle accident in that he directed Transit District Sergeant Klika to investigate the accident when it should have been investigated by the appropriate patrol supervisor, precinct of occurrence.

The Patrol Guide Procedure governing “Department Vehicle Accidents”¹ mandates that “(w)hen a Department vehicle is involved in an accident,” a member who responds to the scene of the accident must “request patrol supervisor, precinct of occurrence, to respond” because only the patrol supervisor, precinct of occurrence is authorized to “conduct investigation and interview person’s (sic) involved/witnesses.”²

The Respondent acknowledged that he directed a Transit District Sergeant, Sergeant Klika, to investigate this accident and that he personally responded to the scene of this accident which he knew involved a Deputy Inspector who was driving a Department vehicle.

¹ Patrol Guide Procedure No. 217-06.

² This procedure also states that “(i)f the operator of the Department vehicle is assigned to other than the precinct of occurrence, a supervisory officer of such member’s command, if available, will perform the tasks of the patrol supervisor.” However, this provision appears to be inapplicable here because the operator of the Department vehicle was the highest ranking supervisor at her command. In any event, the Respondent did not request that a supervisory officer at the 24 Precinct respond to investigate this accident.

The Respondent testified that “even though the Patrol Guide specifically states the patrol supervisor of the precinct” of occurrence, TD1 has “a patrol supervisor and he does all the paperwork for all the accidents” involving motor vehicles. The Respondent stated that “from my interpretation of” the Patrol Guide, the patrol supervisor of the precinct of occurrence includes the TD1 patrol supervisor.

I reject the Respondent’s interpretation that under Patrol Guide Procedure 217-06, the term “patrol supervisor, precinct of occurrence” includes the Transit District patrol supervisor.

Moreover, the Respondent also acknowledged that when he arrived at the scene and saw that the damage to the Department vehicle was so extensive that it was not drivable, he realized that the Deputy Inspector’s statement to him on the phone that the collision was only a minor fender bender was inaccurate. Yet, instead of following the mandated procedure by requesting the patrol supervisor precinct of occurrence to respond to the scene to conduct the investigation, he improperly directed Sergeant Klika, his subordinate, to investigate this accident.

Respondent’s counsel argued in his summation that the Respondent should be found not guilty because he was only following an “order” issued by a superior officer, that the Deputy Inspector was “calling the transit district and telling a lieutenant to come up, send someone up, rather, to help with the accident report,” that the Respondent “really had no basis to question that order,” and that as long as “she wasn’t telling one of her inferior officers to commit some form of misconduct, she had every right to order the lieutenant to do whatever she wanted him to do.” The record does not support Respondent’s counsel’s claim that the Deputy Inspector ordered the Respondent to do

anything. The Deputy Inspector testified that she told the Desk Officer that she had just been in an accident and “would they handle it, could they handle it, and they said yes.” She further testified that, “I don’t specifically remember telling the lieutenant or the sergeant exactly what.” Moreover, the Respondent did not testify that DI Fanning ordered him to do anything. The Respondent testified that during their telephone conversation, DI Fanning merely “explained” to him that she had just been involved “in an accident upstairs and she *asked* (emphasis added) if I can send anyone to help her.” The Respondent further testified that DI Fanning did not direct him to personally respond to the scene of the accident and that he did so on his own after he heard a report that there were injuries. Finally, the Respondent testified that DI Fanning only told him that she was not injured and that she wanted to drive her car home, a request that the Respondent refused because he had personally determined that her car was not drivable.

Respondent’s counsel also argued that the Respondent had the right to rely on Sergeant Klika’s investigation. I reject this argument because, as discussed above, the Respondent should not have assigned Sergeant Klika to conduct this investigation.

The Respondent is found Guilty of Specification No. 2.

PENALTY

In order to determine an appropriate penalty, the Respondent’s service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on July 18, 1996. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found Guilty of engaging in conduct prejudicial to the good order, efficiency or discipline of the Department in that he failed to make proper notifications following an unusual occurrence in which a Department vehicle being driven by an off-duty Deputy Inspector collided with a Fire Department engine, and in that he failed to follow proper Department Vehicle Accidents Procedure because he directed a Transit District sergeant to investigate the accident when it should have been investigated by the appropriate patrol supervisor, precinct of occurrence.

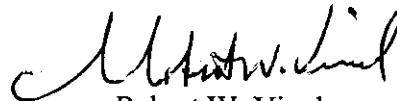
The Patrol Guide Procedure governing Unusual Occurrence Reports states that the purpose of the Procedure is to have the duty captain respond and conduct an immediate investigation of the occurrence so that the Chief of Patrol can be promptly notified of the unusual occurrence. The Patrol Guide Procedure governing Department Vehicle Accidents states that the purpose of the Procedure is “(t)o record and determine the causes of accidents involving Department vehicles...and recommend corrective action.”

As a direct result of the Respondent’s misconduct of failing to comply with the Unusual Occurrence Procedure by notifying the duty captain to respond to the accident scene, an immediate investigation of the occurrence was not conducted by the duty captain and the Chief of Patrol was not promptly notified of this unusual occurrence. Also, as a direct result of the Respondent’s misconduct of improperly assigning Sergeant Klika to investigate this accident the on-the-scene investigation of this collision was not properly conducted. Thus, the Respondent’s actions undermined the purposes of both of these Patrol Guide Procedures and prevented a proper, on-the-scene investigation of this collision. I can only conclude that the Respondent ignored these two important Patrol Guide Procedures in a misguided effort to “help” DI Fanning.

Although the Assistant Department Advocate recommended that the Respondent forfeit ten vacation days as a penalty, the Respondent's failure as a supervisor to comply with two important Patrol Guide Procedures, a failure which adversely affected the Department in that the true facts regarding how the accident occurred were not ascertained until the Internal Affairs Bureau investigated this matter, would appear to warrant a more severe penalty.

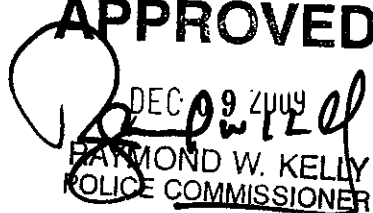
It is, therefore, recommended that the Respondent be required to forfeit 20 vacation days.

Respectfully submitted,



Robert W. Vinal

Assistant Deputy Commissioner - Trials

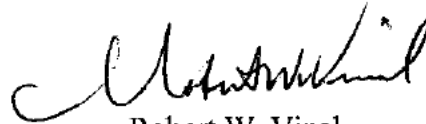
APPROVED
DEC 9 2009

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
LIEUTENANT JOSE ROSARIO
TAX REGISTRY NO. 918253
DISCIPLINARY CASE NO. 83095/07

The Respondent received an overall rating of 4.5 on his 2008 annual performance evaluation, 4.0 on his 2007 annual evaluation and 4.5 on his 2005 evaluation. He has been awarded two Meritorious Police Duty medals and five Excellent Police Duty medals. [REDACTED] He has no prior formal disciplinary record.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner – Trials